

January 16, 2014 7:00 P.M.

The meeting was called to order at 7:00 p.m. by Township Clerk, Amy Leso. The meeting was advertised in the following manner:

- A. Posting written notice on the official Bulletin Board in the Township Municipal Building on January 7, 2014
- B. Faxing and mailing written notice to The South Jersey Times and The Courier Post on January 7, 2014
- C. Filing written notice with the Township Clerk of West Deptford Township on January 7, 2014

Roll Call:

Mr. Cianfarini, Ms. DiCarlo, Mr. Maher, Deputy Mayor Hansen and Mayor Chintall were in attendance for this meeting.

Mayor Chintall publicly thanked George Damminger who has retired as Township Tax Collector. He read the dedication on a plaque that will be presented to Mr. Damminger at a later date. Mr. Damminger was not present at the meeting.

Correspondence:

Ms. DiCarlo made a motion to approve the following items. It was seconded by Mr. Cianfarini and approved by the entire committee.

- 1 Social Affair Permit for West Deptford Soccer for January 18th
- 1 Social Affair Permit for Verga Volunteer Fire Company for February 15th
- 1 Social Affair Permit for Thorofare Fire Company for February 15th
- 1 Raffle Applications for West Deptford Little League for April 5th

Ms. DiCarlo made a motion to approve the meeting minutes from December 19, 2013. It was seconded by Mr. Cianfarini. Ms. DiCarlo requested that the year on page 206 be corrected from 2013 to 2012. She also requested that two sentences on page 207 be switched as her remark was in reference to Mr. Campo's statement. Mr. Cianfarini requested that the sentence on page 207 be corrected to read "Mr. Coates.... noted on a specific line item." Ms. DiCarlo then made a motion to approve the amended meeting minutes. It was seconded by Mr. Cianfarini. The vote to approve the amended meeting minutes was as follows:

Mr. Cianfarini	Y
Ms. DiCarlo	Y
Mr. Maher	Abstain (<i>He was not a member of the committee in 2013</i>)
Deputy Mayor Hansen	Abstain (<i>He was not a member of the committee in 2013</i>)
Mayor Chintall	Y

Mayor Chintall addressed the residents in attendance. He said that he agrees with the comments made regarding the leaf collection being "unacceptable." He cited late falling leaves and early falling snow as factors. He said that further review of procedures in the Public Works Department is necessary. He said that the township has three leaf collection machines which were purchased in 1993, 1994 and 2003. He believes that damage to these machines was due to a lack of proper training of the operator of the machines. He said the keys to rectifying this situation are adaptability, flexibility and notification. He spoke about the use of overtime. He stated that other municipalities have had similar problems and improvements will be made in the future. He also said that the rotation schedule listed on the township website does not accurately reflect the current status of the leaf collection. He also spoke about the problems on Meadowcroft Road. He empathizes with the residents. He said that there are safety and health concerns and the

quality of life for the residents has been impacted. The quality of the pipes will be evaluated. He also addressed the graffiti problem on RiverWinds Drive. There is an ongoing police investigation. He wants the cost of cleaning documented for the future when the responsible person is caught.

Engineer's Report:

Ms. DiCarlo made a motion to approve Payment Request for A.C. Schultes, Inc. for Project Well No. 8 Redevelopment and Repair, Contract No. 2013-3 in the amount of \$23,872.50. Her motion was seconded by Mr. Cianfarini. The vote was as follows:

Mr. Cianfarini	Y
Ms. DiCarlo	Y
Mr. Maher	Y
Deputy Mayor Hansen	Y
Mayor Chintall	Y

Ms. DiCarlo made a motion to authorize Change Order #1 to amend Contract with A.C. Schultes, Inc. for Well No. 8 Redevelopment and Repair. This is for Contract No. 2013-3 in the amount of \$2,125.00 for repairs to the right angle drive per attached correspondence from Engineer. It was seconded by Mr. Cianfarini. Mr. Maher asked if there was an additional cost for the inspection. Mr. Snowden explained that this was the cost for the repair and the inspection by the contractor. Mr. Snowden explained that this problem was not detected until after it was taken apart. The vote was as follows:

Mr. Cianfarini	Y
Ms. DiCarlo	Y
Mr. Maher	Y
Deputy Mayor Hansen	Y
Mayor Chintall	Y

**#30 RESOLUTION OF THE TOWNSHIP OF WEST DEPTFORD AUTHORIZING
CHANGE ORDER #1 TO AMEND CONTRACT WITH A.C. SCHULTES, INC. FOR
WELL NO. 8 REDEVELOPMENT AND REPAIR. THIS IS FOR CONTRACT NO.
2013-3 IN THE AMOUNT OF \$2,125.00 FOR REPAIRS TO THE RIGHT ANGLE
DRIVE PER ATTACHED CORRESPONDENCE FROM ENGINEER**

Mr. Snowden thanked the committee for his appointment. Mr. Snowden highlighted current projects.

Active Project List

1. NJDOT 2014 State Aid, Sidewalk Projects: A-940-034

The NJDOT grant application, along with the resolution, was submitted September 20, 2013 for sidewalk improvements along Grove Avenue.

2. Matthews Branch Sewer: A-940-032

We are working with township staff regarding the maintenance and repair of existing sanitary sewer within the easement.

3. Verizon, Mantua Grove Tank: A-940-033

A meeting was held Tuesday, September 24, with the applicant and they have addressed the engineering issues.

4. Well No. 8 Improvements: A-940-030

Bids were received September 10, 2013. The project was awarded October 3, 2013 to A. C. Schultes, Incorporated for the low bid price of \$78,620. Project is under construction and should be completed by the end of the month.

We recommend payment of Current Estimate No. 1 in the amount of \$23,872.50.

5. Well No. 5 Improvements: A-940-031

Preparing plans and specifications for the replacement of the chlorine contact tank. The existing tank is over thirty (30) years old. **Design is seventy-five percent (75%) complete.**

6. 2013 CDBG Grant Application: A-940-025

An application was submitted April 25, 2013 for Crammer Avenue ADA curb ramps, curbs and sidewalk.

7. RiverWinds – Pool Area HVAC: A-940-019-001

A draft report was submitted to administration for comments. We have been directed to begin design for the replacement of two (2) dehumidifiers and two (2) gas furnaces on the roof. Plans and specifications were delivered to Administration on November 7, 2013 for comments and approval to go to bid.

8. Construction Supplement: A-940-007

We are preparing a construction supplement to the Code regarding general construction and material specifications for street improvements and township utilities.

9. Queen Street: A-940-012

An application was submitted to the New Jersey Local Municipal Aid in the amount of \$311,000. A letter was received on March 26, 2012 from the NJDOT indicating \$175,000 was received.

Bids were received May 30, 2013. We recommend contract award to Landberg Construction, LLC in the amount of \$255,309.67.

The project was awarded on June 20, 2013. A preconstruction meeting was held on August 6, 2013. Current Estimate No. 1, in the amount of \$199,053.85, was approved on November 21, 2013. **The project is ninety-nine percent (99%) complete.**

10. Rehabilitation of Pumping Stations No. 1, 6 and 10: A-940-013

A planning document has been submitted to NJEIT. The preliminary cost estimate is \$2,308,000.

We are reviewing the existing condition of the stations and are preparing recommendations based on our findings.

11. Municipal Lien Searches: A-940-007

As requested by Township.

12. Curb and Sidewalk Waivers: A-940-008-000

As requested by Township.

13. Sewer Maintenance Contract: A-940-022

The project was awarded to Neri's Construction & Rental. Work is being performed by contractor. The township paid the first invoice for payment.

The contractor was called to repair sewer pipe adjacent to the pump station at Philadelphia and Cedar Avenue.

14. Water and Sewer Rules and Regulations: A-940-023

We have been directed to prepare general Rules & Regulations regarding sewer and water service, including construction requirements.

We have prepared a memo regarding the water meter reading system.

We have prepared a draft memo regarding connection fees. We met with the township to discuss outstanding information that is needed.

15. Jessup Road/Conrail Road Crossing, A-940-026

An on-site meeting was held on May 21, 11:00 a.m. The NJDOT will be sending out the meeting minutes for review. The minutes were received and a response sent back. NJDOT has responded and will be analyzing the stormwater issue during design. Railroad crossing construction has been completed.

16. PSE & G Easement Request, A-940-027

A meeting was held on Friday, May 10, 9:00 a.m. to discuss the project. The requested access easement for the township park off Metropolitan Avenue has been received and approved by the township.

17. Red Bank Estates, A-940-036

We are in the process of investigating roadway improvements and water/sewer improvements.

We will prepare a construction estimate, including:

- A. Televising sewer to determine its condition.
- B. Investigate water main material and condition.
- C. Prepare a utility improvement estimate and roadway improvement estimate.

Active Escrow Projects

18. Certificate of Occupancy: A-941-010

Inspections performed and certificates recommended as requested by the township.

19. St. Regis Walk Condominiums: A-941-011

The applicant is requesting replacement of the water booster station for a privately owned water system. **An on-site meeting is scheduled for January 10, 2014.**

20. Solvay Solexis: A-941-009

A meeting was held with the applicant regarding construction of monitoring wells within the township right-of-way on First Avenue. The road-opening permit was issued. Construction has begun and wells installed.

21. NuStar: A-941-008

Mains have been tested and passed. Trench restoration is complete. A punch list has been prepared for the applicant's attention. The applicant has provided notification that the punch list is complete. We are preparing a bond release.

22. Colonial Pipe: A-941-007

The applicant has submitted plans to replace on-site fire water main with larger twelve-inch (12") diameter water main. A preliminary letter with comments has been sent to the applicant.

Revised plans have been received. The applicant is contemplating a twelve-inch (12") fire line. A meeting was held to discuss the plans. The plans have been revised and we are reviewing same for approval.

23. The Farm: A-941-006

A twenty-three (23) lot subdivision currently under Planning Board review. Project includes a bridge. The County is considering taking ownership of the bridge (project had final approval).

Applicant submitted preliminary package for water and sewer approval. We are reviewing the information and have submitted a letter for the applicant to address.

A meeting was held with the applicant on January 31, 2013. Revised plans will be submitted.

24. Paradise Estates: A-941-004; Performance Bond No. B98809020417, \$164,940.00

Performance bond is reduced at thirty percent (30%) of the original. Utilities have been installed and base paving is in place.

Met with the applicant on July 19, 2012 to discuss all outstanding items. The applicant has notified us that the outstanding items have been scheduled for repair or are being addressed.

We attempted to contact the applicant on March 14, 2013 by phone call, email and certified mail and were not successful in doing so. A meeting was held with the township to discuss options and direction.

We recommend a letter be sent to the bonding company, notifying them of the status.

25. Victorian Walk: A-941-005; Performance Bond No. 379, \$275,399.10

We are preparing the outstanding punch list items that should be addressed.

Construction of the dwellings is proceeding.

26. Jessup Run: A-941-001; Performance Bond No. 105706261, \$952,434.00

Under construction. The last sections of sanitary sewer have been installed and tested. Punch list transmitted to applicant for his attention.

Dwelling(s) construction has been requested.

We have received notification from the applicant, stating that the project has been sold to D. R. Horton. A bond reduction will be prepared after preparation of a revised punch list and meeting with the applicant.

27. LS Power: A-941-003-000

The Planning Board has approved the project. The project has been divided into phases, as follows:

Phase I: The power plant and site work.

Phase II: Pump station and pipelines for process water.

Phase III: Electric transmission lines, gas pipeline, and meter stations.

Phase I: A-941-003-001

The performance bond has been submitted and approved.

Bond No.: 886228282169921, 17S10295

Bond Amount:\$3,211,198.70

The applicant is proceeding with construction. The TWA application is approved.

Phase II: A-941-003-002

The applicant has submitted plans, bonds, and escrow amount.

The TWA application for the pumping station was approved at the March 21, 2013 township meeting.

According to the applicant, construction is complete. A punch list has been sent to the applicant. **As-builts have been submitted and maintenance bond will be revised.**

Phase III: A-941-003-003

The soil erosion certification has been received. Plans, bonds, and escrow amount have been submitted.

According to the applicant, construction is complete. A punch list is being prepared and bond reduction/release will be addressed.

28. Commercial Sites

The Planning Board Engineer is currently performing inspection.

Projects Under Maintenance Bond

29. Tatum Street: A-940-007

Final payment was approved at the May 10, 2012 meeting. A two (2) year maintenance bond was submitted in the amount of \$11,314.91 and scheduled to expire May 10, 2014.

30. Lewis Terrace & Garrett Avenue: A-940-007

Final payment was approved on November 15, 2012. The two (2) year maintenance bond will expire November 15, 2014.

31. Patsy Court, Nottingham Estates: A-941-002

The developer is interested in constructing dwellings on the vacant lots. A meeting was held with the applicant on April 11, 2013. **One (1) construction permit has been issued.**

32. RiverWinds Generator: A-940-010

Final payment was approved on February 21, 2013. The project is under maintenance bond until February 2014.

33. Pennsylvania, New Jersey and Laurel Avenue: A-940-007

Project is 100% complete.

T & M to provide expiration date for the maintenance bond.

Inactive Projects

34. Golf Course Water Allocation Permit: A-940-018

The permit was due to expire November 30, 2012, but has been extended until June 30, 2013. The required renewal forms, flow data, and metering certification are being assembled. Files were received from the NJDEP that include plans, details, and a water conservation report.

According to an email from the NJDEP, the permit has been extended to June 30, 2015. As discussed at the township meeting, we are investigating the use of this water for irrigation of the RiverWinds Sports Field.

35. DRBC Permit: A-940-018-001

A DRBC renewal permit application is required for submission and is being prepared.

36. Public Works Garage HVAC/Generator

The preliminary scope and construction costs were submitted to the Township. The project is on hold due to lack of funding.

37. NJDOT Bicycle Route Grant

A \$90,000 grant has been received. Preliminary plans were submitted to the County for approval. T & M has provided the plans. The project needs money to complete, and also NJDOT approval.

We will provide serviced as directed by the Township.

38. Asbury Avenue Sunoco Property Drainage Issue: A-940-016

We will meet on-site upon township request.

39. NJDOT Funding Application for Maple Avenue and North Roosevelt: A-940-021

Our office submitted the funding application prior to October 16, 2012. A resolution for approval of the NJDOT submission was also sent.

He said that a site visit was made to Red Bank Estates and some inspection was done. It is recommended that the entire development be inspected and cleaned. Mr. Cianfarini asked if there was a date for that completion. Mr. Snowden said that Mr. Totten is working on the RFQ. The contractor could begin the work in a month and the work will take about 4-5 days. Mr. Cianfarini requested that this work be expedited. Ms. DiCarlo suggested that a meeting be

scheduled with the residents of that neighborhood to explain the process and the timing. Mr. Snowden added that no breaks in the water lines were indicated. Mr. Hansen asked if the Air Handlers for RiverWinds are ready to go to bid. Mr. Snowden said that they are and the committee must authorize them. Mr. Cianfarini asked about "The Farm" and asked about the county involvement with the bridge. Mr. Snowden explained that it is part of the project and it is generally done by the county.

Mr. Cianfarini made a motion to authorize Budget Appropriation Transfers during the first three months of the succeeding year pursuant to N.J.S.A. 40A:4-59. His motion was seconded by Mr. Maher. Mayor Chintall outlined the transfers. Ms. DiCarlo asked for the reports that support the transfers. Mr. Pine will send them to Ms. DiCarlo tomorrow and will include them in the agenda in the future. Ms. DiCarlo said that the committee should have the reports before they vote on the transfers and the Bill List. Mr. Cianfarini asked Mr. Pine if he can certify that the township will not over-expend. Mr. Pine said that he could. The vote was as follows:

Mr. Cianfarini	Y
Ms. DiCarlo	Y
Mr. Maher	Y
Deputy Mayor Hansen	Y
Mayor Chintall	Y

**#31 RESOLUTION AUTHORIZING BUDGET APPROPRIATION TRANSFERS DURING
THE FIRST THREE MONTHS OF THE SUCCEEDING YEAR PURSUANT TO
N.J.S.A. 40A:4-59**

#32 BILL LIST

WHEREAS, the Township committee of the Township of West Deptford received and reviewed the "Bill List" as prepared by the Township CFO and the Purchasing Officer for the monthly period ending January 14th, 2014.

NOW, THEREFORE, BE IT RESOLVED that said "Bill List" as prepared by the Township CFO and the Purchasing Officer be approved and said Officials are authorized to render payments to each vendor appearing on the attached "Bill List." Adopted at a meeting of the Township Committee of the Township of West Deptford on January 16th, 2014.

Ms. DiCarlo abstains from all items pertaining to Comcast as she is an employee.

Ms. DiCarlo asked about what the township is required to report (to the state). Mr. Pine said that there are repairs to machines coded to vehicle maintenance. Ms. DiCarlo said that those expenses should be in leaf collection and asked Mr. Pine to review the reports. Ms. DiCarlo asked for clarification for the payment to PM Consultants. Mr. Umba explained the payment and stated that they are no longer working. She also asked about the payment for taxes. Mr. Pine explained that this is done quarterly. Mr. Cianfarini asked if the conversion to the Edmonds Software is complete. Mr. Pine is unsure if the Water/Sewer component is complete. Ms. DiCarlo asked if the committee could receive a status report on what is complete and what still needs to be done. Mr. Pine will provide this report via email. Mr. Cianfarini asked about the expenses for RiverWinds listed under "Marketing." They are for Clipper Magazine, TV/DVD Player and a petty cash expense. He asked that they be reviewed to be sure they are in the correct line item. He also asked about the payment to Intersoft Technology for payroll support. Mr. Pine said that this is for a 90-day contract. Mr. Cianfarini also asked what is being stored at Uncle Bob's Storage. He was told it was Recreation and Safety Town Equipment. Mr. Maher asked about the payment for the OED Company. Mr. Totten said it was for Old Dominion Brush

Company. Mr. Hansen asked what the fee for the Zoning Board Solicitor was for. Mr. Umba will investigate.

Mr. Cianfarini made a motion to approve the Bill List and it was seconded by Mr. Hansen. The vote was as follows:

Mr. Cianfarini	Y
Ms. DiCarlo	Y
Mr. Maher	Y
Deputy Mayor Hansen	Y
Mayor Chintall	Y

Open Meeting to the Public:

Mayor Chintall then opened the meeting to the public.

Mr. David Sileo spoke about the bridge project for "The Farm" and asked the committee to investigate. He said it began 10 years ago and things have changed. Automatic approvals were given. He explained the area and the pond and said that it is an important waterway. He would be happy to speak to the committee about this project.

Mr. Rando asked for the protocol for someone to speak in front of the committee. Mr. Ogozalek explained that it was for township business and should not be disruptive or disorderly. Mr. Ogozalek also told him that it was an opportunity for the public to comment and that the committee is not required to respond. Mr. Rando then asked Ms. DiCarlo to give her opinion on the certified audit and the corrective action report. Ms. DiCarlo said that she did not audit the township. She is serving as a member of the committee. Mr. Rando then spoke about an article in the newspaper. He then asked about the Water/Sewer Investigation. He was told that it is an ongoing investigation with the Attorney General.

Mr. Eric Agren asked about the Marketing Contract. Mr. Ogozalek said that there is no contract at this point and he will speak to the committee regarding this. Mr. Agren also asked if a building/shed could be built to store the items currently being stored at Uncle Bob's Storage. He also disagrees with the comments made regarding the leaf collection.

Ms. DiCarlo explained that the equipment was failing and thinks that two new machines should have been purchased in 2012 and 2013. She said that when seasonal employees were cut the weekend pickup ended. She said that Ms. Sprigman said that the leaf collection line item had overtime listed. Mayor Chintall asked Ms. DiCarlo if she asked for overtime. Ms. DiCarlo said that she was told it was not approved. Mayor Chintall stands behind his comments that it was operator error. Mayor Chintall further outlined the steps that were taken. Ms. DiCarlo told Mayor Chintall that he is good in an emergency but said that his lack of planning created the emergency. Mr. Agren then asked questions about the bridge into the new development and believes that the bridge should be the developer's problem.

Ms. Laurin Stahl asked if the township had considered a ban on smoking outside of all public buildings, including RiverWinds. Ms. DiCarlo asked what the law was and what the committee could do. Mr. Ogozalek will review the law but believes that it is not permitted within 25 feet of public buildings. Mr. Umba will also investigate. Mr. Hansen asked if this was just for RiverWinds or all public buildings. He was told it was for all buildings. Ms. Stahl then asked about Red Bank Estates. Mr. Snowden explained his recommendation. She then explained a problem on Pixley Place. Mr. Douglas explained what was done to correct that problem. Ms. Stahl really wants to find a way to fix the problems.

Mr. John Smashey said that his home was condemned in October after damage was done by Hurricane Irene. He said that 35 homes were flooded and there are still 10 that are inhabitable. He was told by Mr. Gill that the committee is holding up the process. Mr. Umba explained that an appraiser is needed. Ms. DiCarlo asked if the committee could receive an update at the next meeting. Mr. Maher will also meet with Mr. Umba to discuss this.

Mr. Mike McManamy said that he is the West Deptford representative on the Gloucester County Redevelopment Council. He believes that he is being stonewalled. He is not being notified of meetings and cannot get a return phone call. He said that there is a redevelopment area on Route 45 and also on Friars Road. He outlined his history and his frustration to this point. Mr. Cianfarini requests that the township look into this. Mayor Chintall said that Lisa Morina is no longer the director.

Mr. Bill Mohnacs said that there are sinking manhole covers on the corner of Kings Highway and Jessup Road. Mr. Umba will look into this.

Mr. David Sileo agrees with a no-smoking ordinance and thinks it should extend to all public buildings. He thinks that there should be a ban on smoking for the entire RiverWinds complex with possible special considerations for the restaurant. He then told the committee that cigarette butts account for 30% of the litter in waterways because they are not biodegradable. Mr. Hansen said that there is a designated smoking area at RiverWinds Community Center and asked the managers to be sure it is clearly identified.

Mr. Adam Reid asked about Mr. Pine's hours (20 hours per week). He said that Ms. Sprigman struggled to get information to the committee and asked if the committee was comfortable that he would only be working 20 hours per week. He then asked if the problems that have occurred in Woolwich Township would occur here. He then asked if Mr. Campo was being paid for 90 days, could he have worked for those 90 days. Mayor Chintall said that he could have but that he did not want to do so. He then asked Mayor Chintall about his comments on overtime. He said that if overtime had been used in October and November then the leaves would have been picked up. Mayor Chintall will review.

Ms. DiCarlo said that she would hope that if the township had the right to get 90 days out of work from someone that they would get it and not just pay them and send them on their way.

Mr. Cianfarini made a motion to close the public portion of the meeting. His motion was seconded by Mr. Maher and approved by the entire committee.

Ms. DiCarlo made a motion for the removal of Water and Sewer Charges. Her motion was seconded by Mr. Cianfarini. The vote was as follows:

Mr. Cianfarini	Y
Ms. DiCarlo	Y
Mr. Maher	Y
Deputy Mayor Hansen	Y
Mayor Chintall	Y

#33 RESOLUTION FOR THE REMOVAL OF WATER AND SEWER CHARGES

Mr. Cianfarini made a motion for the removal of Water and Sewer Charges. His motion was seconded by Mr. Hansen. Mr. Pine was asked what type of checks and balances will be available when the new Edmonds System is installed. He said that it will flag accounts that appear to be using excess amounts. Mr. Umba added that they will still need to register the dials on the meters. Ms. DiCarlo asked when this will occur and Mr. Umba responded. Mr. Douglas

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explained that this resolution is a credit to the account - it is not a refund. Mr. Maher asked if there was something in the current system to flag this type of problem. Mr. Cianfarini explained that it is an old system. The vote was as follows:

Mr. Cianfarini	Y
Ms. DiCarlo	Y
Mr. Maher	Y
Deputy Mayor Hansen	Y
Mayor Chintall	Y

#34 RESOLUTION FOR THE REMOVAL OF WATER AND SEWER CHARGES

Mr. Maher made a motion to approve the refund of various fees for RiverWinds Community Center. His motion was seconded by Mr. Cianfarini. The vote was as follows:

Mr. Cianfarini	Y
Ms. DiCarlo	Y
Mr. Maher	Y
Deputy Mayor Hansen	Y
Mayor Chintall	Y

**#35 RESOLUTION FOR THE REFUND OF VARIOUS FEES FOR
RIVERWINDS COMMUNITY CENTER**

Mr. Cianfarini made a motion to authorize the submission of an application for funding for the Municipal Alliance Project for the Governor's Council on Alcoholism and Drug Abuse Fiscal Grant Cycle July 1, 2014 to June 20, 2015. His motion was seconded by Ms. DiCarlo. The vote was as follows:

Mr. Cianfarini	Y
Ms. DiCarlo	Y
Mr. Maher	Y
Deputy Mayor Hansen	Y
Mayor Chintall	Y

**#36 RESOLUTION OF THE TOWNSHIP OF WEST DEPTFORD AUTHORIZING THE
SUBMISSION OF AN APPLICATION FOR FUNDING FOR THE MUNICIPAL ALLIANCE
PROJECT FOR THE GOVERNOR'S COUNCIL ON ALCOHOLISM AND DRUG ABUSE
FISCAL GRANT CYCLE JULY 1, 2014 TO JUNE 20, 2015**

Mr. Cianfarini made a motion to authorize the filing of the Year 2013 Tonnage Grant Application with the New Jersey Department of Environmental Protection. His motion was seconded by Mr. Maher. The vote was as follows:

Mr. Cianfarini	Y
Ms. DiCarlo	Y
Mr. Maher	Y
Deputy Mayor Hansen	Y
Mayor Chintall	Y

**#37 RESOLUTION OF THE TOWNSHIP OF WEST DEPTFORD AUTHORIZING THE
FILING OF THE YEAR 2013 TONNAGE GRANT APPLICATION WITH THE NEW
JERSEY DEPARTMENT OF ENVIRONMENTAL PROTECTION**

Mr. Cianfarini made a motion to appoint Brandon Umba as Alternate Fund Commissioner. Mr. Cianfarini was previously appointed as Fund Commissioner. His motion was seconded by Mr. Maher. Ms. DiCarlo asked Mr. Ogozalek if there were any requirements for the position. Mr. Ogozalek said that there were not. The vote was as follows:

Mr. Cianfarini	Y
Ms. DiCarlo	N
Mr. Maher	Y
Deputy Mayor Hansen	Y
Mayor Chintall	Y

#38 RESOLUTION OF THE TOWNSHIP OF WEST DEPTFORD, COUNTY OF GLOUCESTER, STATE OF NEW JERSEY AUTHORIZING THE APPOINTMENT OF A FUND COMMISSIONER AND ALTERNATE FUND COMMISSIONER

Mr. Cianfarini made a motion to appoint Penny Sheehan as Tax Collector for a four-year term. It was seconded by Ms. DiCarlo. Ms. DiCarlo asked Mr. Ogozalek if he did research on the appointment for this position. Mr. Ogozalek said that there is no set period of time. The vote was as follows:

Mr. Cianfarini	Y
Ms. DiCarlo	Y
Mr. Maher	Y
Deputy Mayor Hansen	Y
Mayor Chintall	Y

#39 RESOLUTION OF THE TOWNSHIP OF WEST DEPTFORD APPOINTING A TAX COLLECTOR FOR A FOUR YEAR TERM

Mr. Cianfarini made a motion to appoint Susan Pihs as a Class II Alternate to the Multiple Dwelling Regulation Board. His motion was seconded by Mr. Maher. The vote was as follows:

Mr. Cianfarini	Y
Ms. DiCarlo	Y
Mr. Maher	Y
Deputy Mayor Hansen	Y
Mayor Chintall	Y

#40 RESOLUTION OF THE TOWNSHIP OF WEST DEPTFORD APPOINTING A CLASS II ALTERNATE TO THE MULTIPLE DWELLING REGULATION BOARD

Mr. Cianfarini made a motion to appoint Mayor Chintall as the Executive Director for the West Deptford Redevelopment Entity. His motion was seconded by Mr. Hansen. Ms. DiCarlo asked how this was not a conflict of interest. Mr. Ogozalek said that there is no conflict because the township does not have a taxing authority. Ms. DiCarlo asked Mayor Chintall if he had ever overseen a land deal. Ms. DiCarlo read the qualifications listed on 40A: 12A-12 which state that the director should have real estate and land experience. The vote was as follows:

Mr. Cianfarini	Y
Ms. DiCarlo	N
Mr. Maher	Y

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Deputy Mayor Hansen	Y
Mayor Chintall	Y

**#41 RESOLUTION OF THE TOWNSHIP OF WEST DEPTFORD APPOINTING AN
EXECUTIVE DIRECTOR FOR THE WEST DEPTFORD REDEVELOPMENT ENTITY**

Mr. Hansen made a motion to approve the first reading of the following ordinance. It was seconded by Mr. Cianfarini. Mayor Chintall explained that these would still be Mayoral appointments. Mr. Hansen asked about section #2 "Powers and Duties" and requested it be changed from "prepare" to "review" the budget. Mr. Ogozalek explained that this section was if the board was given money to spend. Mr. Hansen then asked for "review of RiverWinds budget and advise township committee" to be added to the duties in section D. Ms DiCarlo asked why this would be prudent. Mr. Hansen explained that the board needs more involvement. Ms. DiCarlo disagreed and said that the managers should prepare the budget; however members of the board could sit in on the meetings. She also said that personnel issues (a large part of the budget) cannot be public. Mr. Ogozalek said that they could be discussed in generalities but not specific people. Mr. Cianfarini added that the board could discuss the staff as a whole but not as it applied to specific people. Ms. DiCarlo said that if they are not fully informed then they cannot advise. Ms. DiCarlo said that the budget should be the managers' responsibility and having to answer to seven different people will be difficult. She does not believe that this falls under the scope of why this board was established. Ms. DiCarlo also believes that "monthly" reports should be changed to "quarterly." Mr. Hansen agrees. The second reading of this ordinance will be on February 20th. The vote was as follows:

Mr. Cianfarini	Y
Ms. DiCarlo	N
Mr. Maher	Y
Deputy Mayor Hansen	Y
Mayor Chintall	Y

**ORDINANCE OF THE TOWNSHIP OF WEST DEPTFORD ESTABLISHING A
RIVERWINDS ADVISORY COMMITTEE
#2014-01**

Ms. DiCarlo made a motion to approve the first reading of the following ordinance. It was seconded by Mr. Maher. Mayor Chintall explained that the committee will consist of five members and two alternates. These will also be Mayoral appointments. Ms. DiCarlo asked that "annual" reports be changed to "quarterly" in section 2B. Also, "prepare an annual budget" will be relocated under "duties." Mr. Ogozalek explained that the current committee remains in effect until the ordinance passes the second reading on February 20th. The vote was as follows:

Mr. Cianfarini	Y
Ms. DiCarlo	Y
Mr. Maher	Y
Deputy Mayor Hansen	Y
Mayor Chintall	Y

**ORDINANCE OF THE TOWNSHIP OF WEST DEPTFORD ESTABLISHING A
COMMITTEE ON THE DISABLED
#2014-02**

Mr. Cianfarini made a motion to approve the first reading of the following ordinance. It was seconded by Mr. Maher. Mayor Chintall explained that this outlines the salary range for the

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Acting Administrator and includes the increase for minimum wage. Ms. DiCarlo asked if the committee was to set the actual salary for the Acting Administrator, not just the range. Mr. Ogozalek said that they could. Ms. DiCarlo said that she thinks they should set his salary. Mr. Ogozalek said that the Mayor can set the salary within the range. Ms. DiCarlo then asked what the salary would be. Mr. Cianfarini said it would be \$75,000.00. Ms. DiCarlo also asked about the Treasurer hired by Mr. Umba. She read from a book citing state statute 40A title 9 where it states that the treasurer can be granted tenure. She said that all other positions were appointed by the committee and questioned why this one was not. Mr. Ogozalek explained that the administrator is granted the power to appoint and hire. Ms. DiCarlo would like an advisory from the Local Finance Board. She stated that we have a new administrator and we hired an important position for which all resumes were sent to Mr. Cianfarini. She restated that she would like an opinion from the Local Finance Board. Mr. Ogozalek can send a letter or Ms. DiCarlo can. She thinks the Treasurer should be appointed by the committee. The second reading of this ordinance will be on February 20th. The vote was as follows:

Mr. Cianfarini	Y
Ms. DiCarlo	Y, <i>believes the acting Administrator's salary is too high</i>
Mr. Maher	Y
Deputy Mayor Hansen	Y
Mayor Chintall	Y

**ORDINANCE OF THE TOWNSHIP OF WEST DEPTFORD FIXING SALARY
GRADES, POSITIONS AND RANGES OF OFFICIALS AND EMPLOYEES
OF THE TOWNSHIP OF WEST DEPTFORD
#2014-03**

Mayor Chintall made the following appointments:

Joe Gill is appointed as the Emergency Management Coordinator for a three-year term.

Peggy Page is appointed to the Library Board as the Superintendent's representative for a one-year term.

Ed Komczyk is appointed to the Environmental Commission for a three-year term.

Ms DiCarlo brought up two points. She spoke about the salary set for the Acting Administrator and the hiring of Ms. Sprigman who was terminated on 12/31/13. She received an email from Mr. Umba on January 6, 2014 that Ms. Sprigman had been rehired as Treasurer and her salary was set by the Acting Administrator. Ms. DiCarlo said she assumes that Ms. Sprigman, Mr. Campo and Mr. Damming were all taken off of the cash accounts. She continued to say that the bank would then need a resolution to add Ms. Sprigman back to the cash account. She then asked if all of these people were not employed by the township for a week but had access to the cash accounts. Ms. DiCarlo stated that if Ms. Sprigman's term expired, she should have been removed from the accounts. Mr. Umba said that the prior administrator should have done that. Ms. DiCarlo asked for the date she was taken off the accounts. Mr. Umba did not know the date but stated that it should have been done when her term expired. Mr. Ogozalek said that notification should have been done on January 2nd. He said the committee should decide what the first order of business should be. Ms. DiCarlo wants to see a detailed analysis of what took place. She wants to know when action was taken and whose responsibility it was. Mr. Cianfarini said that they were notified by the state that Mr. Damming was eligible for retirement on 12/31/13. Ms. DiCarlo said that the bank will still need a resolution from the committee. Mr. Maher asked Ms. DiCarlo if she knew on January 2nd that a resolution from the committee was needed to remove Ms. Sprigman from the cash accounts. Ms. DiCarlo said that she did. He then asked why she did not bring it up at that time. Ms. DiCarlo said that the committee should not

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have to tell the Acting Administrator how to do his job. Mr. Maher said that the entire committee has a responsibility to protect the assets of the town.

Mr. Cianfarini made a motion authorizing a Closed Session of the West Deptford Township Committee to discuss matters involving personnel: Specifically to interview candidates for Lieutenant of the West Deptford Police Department. His motion was seconded by Mr. Hansen and approved by the entire committee.

**#42 RESOLUTION OF THE TOWNSHIP OF WEST DEPTFORD CLOSED SESSION
OF THE WEST DEPTFORD TOWNSHIP COMMITTEE TO DISCUSS MATTERS
INVOLVING PERSONNEL: SPECIFICALLY TO INTERVIEW CANDIDATES
FOR LIEUTENANT OF THE WEST DEPTFORD POLICE DEPARTMENT**

The Committee then went into Closed Session.

Closed Session:

The specific information and outcome of the closed session will be made public at a time when they are fully resolved.

The committee returned from the closed session.

Ms. DiCarlo made a motion to return to open session. It was seconded by Mr. Hansen and approved by the entire committee.

Open Meeting to the Public:

Mayor Chintall opened the meeting to the public.

Mr. Eric Agren asked if the township has an economic development counsel or a redevelopment counsel. He was told that West Deptford does have a Special Counsel for Redevelopment. He then asked if he should be involved in the Route 45 issue (mentioned earlier by Mr. McManamy).

Mr. Maher made a motion to close the meeting to the public and it was seconded by Mr. Cianfarini. The motion carried unanimously.

Mayor Chintall called for a motion to adjourn. Mr. Hansen made a motion, a second was given by Ms. DiCarlo and approved by the entire committee.

Respectfully Submitted,

Amy Leso, RMC
Township Clerk